

Reconnection after theft allegation remitted to s.126 and clause 6.8

High Court of Judicature at Allahabad · Division Bench · 30 July 2014 · Writ - C No. 38788 of 2014 · **Writ disposed of; respondent no. 2 directed to decide the reconnection and assessment application under s.126 read with clause 6.8 within two months, without examining merits.**

HEADNOTE

After a theft allegation and FIR, the petitioner sought a writ to decide his application for reconnection and restoration on LMV-6 in place of LMV-2, with assessment of charges still pending. Without examining merits, the Court held the grievance redressable by the competent authority under s.126 of the Electricity Act, 2003 read with clause 6.8 of the Electricity Supply Code, 2005, and directed respondent no. 2 to decide the application preferably within two months.

FACTUAL SUMMARY

Mohammad Samim faced an allegation of electricity theft and an FIR. He petitioned the Allahabad High Court for a direction to decide his application for reconnection and restoration of supply, seeking LMV-6 load in place of LMV-2, with assessment of charges also remaining to be done. Counsel for the Electricity Department appeared. The Court recorded the theft allegation and FIR but did not examine the claim on merits.

HOLDING-UNITS

INTERPLAY · EA2003::126

forum for reconnection and assessment after theft allegation

HOLDING

A writ seeking decision of an application for reconnection and restoration (LMV-6 in place of LMV-2) and assessment of charges, raised after a theft allegation and FIR, is to be redressed by the competent authority under s.126 of the Electricity Act, 2003 read with clause 6.8 of the Electricity Supply Code, 2005. The Court did not examine merits and directed respondent no. 2 to decide the application preferably within two months of production of a certified copy. ¶ 1

PRINCIPLE TAGS

opportunity-before-final-assessment After a theft allegation and FIR, the petitioner sought a writ to decide his application for reconnection and restoration on LMV-6 in place of LMV-2, with assessment of charges still pending.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF RECONNECTION, RESTORATION, LMV-6 IN PLACE OF LMV-2, AND ASSESSMENT OF CHARGES

Court expressly declined to examine the claim on merits. ¶ 1

NOT DECIDED — WHETHER THEFT (S.135 / CLAUSES 8.1-8.2) OR UNAUTHORISED USE (S.126 / CLAUSE 6.8) IS THE APPLICABLE TRACK

Theft allegation and FIR were recorded, yet the Court pointed only to s.126 read with clause 6.8. ¶ 1

